



File No.: EXP202200440

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on 14/12/2021. The complaint is directed against ENI PLENITUDE IBERIA S.L. with NIF B39793294 (previously ALDRO ENERGÍA Y SOLUCIONES S.L., and hereinafter ALDRO); however, in view of the facts, the data controller is ALPA 57 PRODUCCIONES, S.L., with NIF B13512892, as the processor of the former (hereinafter the complained party). The reasons for the complaint are as follows: the complainant states that they received a call on their phone supposedly from their electricity supply company (IBERDROLA) offering a renewal of the contract, sending them a message indicating a link to download the contract; upon accessing it, they realize that the company is ALDRO, with their personal and banking data appearing without their having provided it and without having authorized such contracting.

A copy of the contract is provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to ALDRO on 17/01/2022, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 19/01/2023 as evidenced by the acknowledgment of receipt in the file.

On 18/02/2022, ALDRO responded stating that:

"They have checked in the ALDROGEST customer database that the interested party is not registered as they have not formalized any contract with ALDRO.

Subsequently, the matter was forwarded to the distributor channel and a commercial rejection was recorded managed by ALPA 57 PRODUCCIONES S.L., an external collaborator outside the commercial establishment of ALDRO.

It is then deemed appropriate to establish communication with the interested party to explain how data processing is carried out in the contracting/pre-contracting process (an email dated 16/2/2022 is attached)."

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"ALDRO has no record of having received any request for the exercise of the rights regulated in Articles 15 to 22 from the complainant."

"To facilitate the exercise of the ARCOPOL rights, ALDRO informs interested parties of the available channels for exercising their rights, and this information is available in the contracts, on the website <https://aldroenergia.com>, and in the electronic headquarters of the AEPD/DPD consultation."

"This complaint arises from a commercial offer made by an energy consultancy outside the commercial establishment, namely ALPA 57 PRODUCCIONES S.L., with which ALDRO has signed a Service Provision Contract dated December 12, 2019."

It is verified that the contract indicates on page 2, General Conditions, Clauses, Object, section 1.1 that:

"ALPA 57 as a collaborator commits to provide Aldro with the services of promotion, prospecting, advising, and support to its commercial department for the acquisition and loyalty of customers interested in contracting or renewing Products and Services [...], in accordance with the guidelines and

action programs determined by Aldro in each case.”

(...)

“in which the sales protocol that must be followed as a collaborator is detailed, in accordance with the good faith and due diligence that identifies ALDRO. Such energy consultancy is an external and independent company from ALDRO.”

In Annex III, page 20, the work methodology is stated, in which section 1.2 indicates that: “Aldro will request the Collaborator to obtain the customer's signature on the contracts or the telephone recording of the sale, as express proof of the customer's consent to the contracting of the Products and Services. In any case, contracts with customers will be formalized by Aldro as long as there is express consent to the conditions thereof, after verifying the corresponding contractual documentation and/or the telephone recording of the sale by Aldro.”

“Within the service provision contract, ANNEX IV - Contract of Data Processing Manager is included.” In this document, page 26, clause IV, Obligations of the data processor, point k), paragraph 2 states that:

“The processor undertakes to ensure to the controller that the interested parties have expressly authorized their consent to receive commercial offers from the controller, at least related to the energy sector, and is responsible for the legitimacy of the databases it uses, which must be under its ownership, leaving the controller indemnified from any damage, claim, or litigation that may arise due to the breach of any of the aforementioned commitments.”

In Annex VIII, page 35, Regarding Conditions for the Telephone Acquisition of Energy Supply and Service Contracts, it is indicated on page 36, point 1.5 “The

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The collaborator will carry out the marketing of ALDRO's products and services according to the following procedure:

1. ALDRO will provide the COLLABORATOR with the commercial offers that may be presented to potential clients at any given time through each Campaign Annex.
2. Likewise, ALDRO will provide the COLLABORATOR with the legal texts that must be communicated to clients in the sales recordings, which will be accepted by THE COLLABORATOR through the signing of the corresponding Annex.
3. THE COLLABORATOR will accurately collect all necessary data from the client for contracting purposes. By way of example, but not limited to, personal data, supply point data, and banking data will be obtained.
4. THE COLLABORATOR will register the complete recording in the ALDRO software tool in the format that ALDRO indicates at each moment of the sales process and the reading of the legal text, as otherwise, the telephone sales contract will not be valid.
5. THE COLLABORATOR must upload to the FTP set up for this purpose the calls effectively made on the day. All content of the calls, whether sales-related or not, must be uploaded to ensure the integrity of the actions of the Collaborator.

On page 36, Second. Telephone Sales Registration. This point contains the sales procedure to be carried out by the COLLABORATOR following ALDRO's instructions.

On page 37, point 2.4 “THE COLLABORATOR must use the legal texts provided by ALDRO and must record all conversations, which will be stored and safeguarded by THE COLLABORATOR for at least 12 months from the date of the recording.”

On page 37, Third. Protection of Personal Data, point 3.3 refers to the origin of the databases, as well as their ownership.

On page 38, Fourth, Obligations of the Collaborator, point 4.1 “THE COLLABORATOR will identify at all times the phone numbers from which they make calls, which must in any case be owned by them, which they declare and accept in their capacity as an authorized operator in the telecommunications

sector.” (The underlining is from the Agency).

On the date 20/12/2022, it is verified that ALPA 57 PRODUCCIONES does not appear under this name or with the NIF B-13512892 in the Telecommunications Numbering and Operators Register of the CNMC.

On page 40, the Document information annex good commercial practices is recorded.

The responding party continues in their reply that:

“(i) ALDRO contractually requires external collaborators of the sales channel, in this case ALPA 57 PRODUCCIONES S.L., that the database to be used for commercial campaigns is obtained lawfully in accordance with the provisions of data protection regulations, for which they must prove that they have the requisite express consent of ALDRO's POTENTIAL CLIENT, therefore it is requested...”

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through the communication channel of distributors to ALPA 57 PRODUCCIONES, to prove the obtaining of the express consent of the interested party (...) dated January 19 and February 4, 10, 11, and 14, 2022 (application attached) to which we have not received a response.”

“In relation to the Report on the measures taken to prevent similar incidents, implementation dates, and controls carried out to verify their effectiveness:

(i) ALDRO has established the necessary protocols to ensure that the processing of personal data of its clients is carried out lawfully, fairly, and transparently, and has adopted appropriate technical and organizational measures to ensure compliance with the requirements of the GDPR and the LOPDGDD. Essentially, the requirements of the sales process with external commercial collaborators are stipulated, which require strict compliance with data protection regulations, along with the dual verification pathway that is applied for the perfection of contracts, in order to minimize the risks of non-compliance.

(ii) ALDRO periodically audits the contracting processes by external energy consultancies to ensure the consent provided by the recipient of the commercial communication. Therefore, random checks are carried out to verify that the effective express consent of the advertising recipient is obtained.

(iii) To reinforce the telephone contracting process, ALDRO has implemented a system for sending certified SMS messages to clients so that they can validate their contracts with ALDRO via SMS.

(iv) In guarantee of the protection of the right to data protection of the interested party, we requested on 01/19/2022, from the energy consultancy ALPA 57 PRODUCCIONES through the contact email established for this purpose in the contract of 12/12/2019, ***EMAIL.1 to cancel the data for commercial purposes of the interested party, not receiving confirmation of the same, such request is attached.”

It is verified that this document contains copies of emails from ALDRO to Alpa57 dated 01/19/2022 and 02/04, 02/10, 02/11, and 02/14/2022, where ALDRO requests Alpa57 the recordings of the call, as well as access and blocking of the data of the interested party, their contract number, and their ID number.

THIRD: On 03/14/2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

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An information request was made to the defendant on 04/05/2022, which was delivered on April 9 without obtaining a response; it was reiterated by postal means on June 29 and was delivered on July 6 without obtaining a response; it was reiterated by email on August 12 to the address ***EMAIL.1 and no response was obtained; it was reiterated by electronic notification on September 30, which was delivered on October 4, and a response was finally obtained on 10/17/2022 where it states:

"That we cannot provide the requested information because we do not have information about the claimant in our database, and we also cannot access the database of ALDRO ENERGÍA Y SOLUCIONES S.L., since our collaboration ended.

We foresee that the requested information is in the possession of the company ALDRO ENERGÍA Y SOLUCIONES S.L."

FIFTH: On 02/17/2023, the Director of the Spanish Data Protection Agency agreed to initiate sanctioning proceedings against the defendant for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR, with a fine of €10,000 (ten thousand euros).

SIXTH: Upon notification of the initiation agreement, the defendant, by means of a letter dated 03/30/2023, reiterated what was already stated in the previous letter and, in addition, that the commercial relationship they maintained with ALDRO ENERGIA ended on 02/04/2022. Upon termination, they proceeded to comply with one of the contractual obligations, which was the deletion of any information or personal data of ALDRO and/or its clients that existed in their systems.

SEVENTH: On 04/03/2023, a period for the practice of evidence was initiated, agreeing to the following:

To consider reproduced for evidentiary purposes the complaint filed by the claimant and its documentation, the documents obtained and generated by the Inspection Services that are part of the file E/05859/2020.

To consider reproduced for evidentiary purposes the allegations to the initiation agreement presented by the defendant.

EIGHTH: From the actions carried out in this procedure, the following have been accredited:

PROVEN FACTS

FIRST. On 12/14/2021, a letter from the claimant was received at the AEPD stating that the company called their phone number supposedly from their electricity supply company (IBERDROLA), to offer them the renewal of the contract, sending them a message indicating a link to download the contract, and upon accessing it, they realized that the company was not their supplier but ALDRO, with all their data appearing in the document.

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personal and banking information without having provided it and without having granted authorization for such contracting.

SECOND. The claiming party has provided a Certification of commercial visit related to ALDRO ENERGIA, which states:

"The commercial offer has been made" and below are two boxes: the first pre-checked indicates Outside the consumer's private residence and the second In the private residence, upon request of the consumer.

THIRD. The claimant has submitted a copy of the Energy Supply and Home Services Contract, contract no. ***REFERENCE.1, which features the logo of the marketer ALDRO ENERGIA.

As client data, it includes their name and surname, ID number, full address, locality, postal code and province, mobile number, and CNAE.

It also includes the CUPS number, contracted power, and electrical product, expected consumption, and the box related to the change of marketer is pre-checked.

At the bottom, it bears the signature of the entity's representative and the date 13/12/2021.

Additionally, there is a SEPA direct debit authorization order, which contains the claimant's banking details.

FOURTH. ALDRO ENERGIA contacted the claimant via email dated 16/02/2022 informing them of the following:

“1. In the distributor database, there is a commercial rejection associated with your personal data, managed by the respondent; your personal data comes from this external collaborator outside the commercial establishment, the respondent, ... with whom ALDRO has a service provision contract, which requires, among other things, that the database be obtained lawfully in accordance with the provisions of data protection regulations, therefore it is necessary to provide proof of the required express consent, which has been requested, but we have not yet received a response.

ALDRO carries out the contracting process through a dual verification method, firstly, with a phone call that is recorded as a measure of accreditation of the contracting and the consents granted; subsequently, with the client's prior consent, an SMS with certified notification is sent to the interested party's mobile phone with the details of the pre-contract. This message must be accepted and responded to by the POTENTIAL CLIENT to finalize the contracting; in this specific case, you did not confirm the SMS and therefore the contracting process was not completed.

From the moment the SMS verification is not answered, ALDRO proceeds to block the personal data obtained in the pre-contracting in accordance with Article 32 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights. The data blocking consists of the identification and reservation of the data for the enforcement of possible liabilities arising from the processing, adopting technical and organizational measures to prevent its processing, including its visualization.

2. ALDRO has repeatedly requested from the respondent the recording of the pre-contracting phone call, but we have not yet received a response; as soon as we receive it, we will forward it to you.”

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FIFTH. A collaboration contract between ALDRO ENERGIA and the respondent dated 12/12/2019 has been submitted; in Annex III, Documentation related to the client, work methodology, and good commercial practices, it is indicated in section 1.2 that: “Aldro will request the Collaborator to obtain the client's signature on the contracts or the telephone recording of the sale, as express proof of the client's consent to the contracting of the Products and Services. In any case, contracts with clients will be formalized by Aldro as long as there is express consent to the conditions thereof, prior to verification of the corresponding contractual documentation and/or the telephone recording of the sale by Aldro.”

And in point 1.4 (ii) it is established that: “Regarding the recruitment work, under no circumstances will any type of fraudulent contracting or contracting without the consent of Clients or potential Clients be tolerated, in accordance with Aldro's ethical policy.

(...)

In the event of any behavior contrary to the aforementioned obligation, the Collaborator will take all necessary actions to eradicate such practices, as a demonstration of its opposition to such practices, without prejudice to the application by Aldro of the actions provided for in Clause 10 of the Contract.

(...)”

Annex IV of the aforementioned contract is titled Data Processing Agreement, in which the respondent acquires the status of data processor.

In Clause IV, Obligations of the Data Processor, letter I), it states that “In the event of non-compliance by the processor with its obligations arising from data processing, the processor assumes full responsibility for such non-compliance. In any case, the controller shall be held harmless against any possible claims from affected individuals, and consequently, the costs generated by any possible sanctions imposed by either the courts or the Data Protection Authority due to the processor's non-compliance shall be borne by the processor.”

SIXTH. ALDRO ENERGIA has submitted copies of the emails sent to the respondent on the dates 19/01/2022, 04/02/2022, 10/02/2022, 11/02/2022, and 14/02/2022, through which it requested the

recordings related to contract ***REFERENCE.1 that would prove the obtaining of the express consent of the claimant, without receiving any response.

SEVENTH. The respondent, in a written response to the information request from the AEPD dated 17/10/2022, stated: "We cannot provide the requested information because we do not have any information about the claimant in our database, and we also cannot access the database of ALDRO ENERGÍA Y SOLUCIONES S.L., since our collaboration ended," and that "unless there is an error or omission, we have no record of any prior notification regarding this file, nor have we been informed of the complaint filed, so we cannot make any claims regarding it."

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LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures."

II

Article 6, Lawfulness of processing, of the GDPR in its paragraph 1, establishes that:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

III

The presence of the subjective element as a condition for the emergence of sanctioning liability has been confirmed by the Constitutional Court, among others.

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others, in STC 76/1999, in which it states that administrative sanctions share the same nature as criminal ones, being one of the manifestations of the State's ius puniendi, and that, as a requirement derived from the principles of legal certainty and criminal legality enshrined in Articles 9.3 and 25.1 of

the CE, their existence is essential for imposing them.

In turn, Law 40/2015, on the Legal Regime of the Public Sector, in Article 28, under the heading "Responsibility," establishes in its section 1:

"1. Only individuals and legal entities, as well as, when a Law recognizes their capacity to act, groups of affected parties, unions, and entities without legal personality and independent or autonomous assets, that are responsible for the same due to intent or negligence, may be sanctioned for acts constituting administrative infractions.

(...)"

Sanctioning responsibility may be demanded on the basis of intent or negligence and even slight negligence. In its SAN of 17/10/2007 (Rec. 63/2006), the National Court states that "...the administrative offense provided for in Article 44.3.d) of the LOPD is consummated, as is usually the general rule in administrative infractions, by the concurrence of slight negligence. Indeed, the principle of culpability provided for in Article 130.1 of Law 30/1992 states that only those responsible for acts constituting administrative infractions may be sanctioned, even for mere non-compliance. This mere non-compliance cannot be understood as the admission in sanctioning administrative law of objective responsibility..."

IV

1. As stated in the proven facts, the claimant states that they had received a call to their phone number, supposedly from their electricity supply company (IBERDROLA), offering them the renewal of the supply contract they maintained with them by sending a message indicating a link to download the contract, and upon accessing it, they noticed that the supplying company was not theirs but ALDRO, with their personal and banking details appearing without their having provided them and without having authorized such contracting.

ALDRO, responsible for the processing, has indicated that the management was carried out through its data processor, the respondent, requesting on several occasions the recordings of the contracting without them being provided.

Thus, it is evidenced that ALDRO contacted the respondent via email on the dates 19/01/2022 and 4, 10, 11, and 14/02/2022, requesting that they send the recordings of the call made to the claimant where the consent for the contracting, the access and blocking of the data of the interested party, their contract number, and their ID number were recorded.

The respondent, requested by the acting inspector on 05/04/2022 to provide information, did not respond; this request was reiterated on 12/08/2022 to the address ***EMAIL.1 with the same result; they were again requested via electronic notification on 30/09/2022, responding on 17/10/2022:

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"We cannot provide the requested information because we do not have any information about the claimant in our database, and we also cannot access the database of ALDRO ENERGÍA Y SOLUCIONES S.L., since our collaboration ended.

We anticipate that the requested information is in the possession of the company ALDRO ENERGÍA Y SOLUCIONES S.L."

Subsequently, upon notification of the Agreement to initiate allegations, the respondent stated that after conducting a thorough search in their systems for the documentation that had been requested, they could not provide anything as they did not have any information and could not defend themselves; that the commercial relationship they maintained with ALDRO ended on 02/04/2022, proceeding to fulfill the contractual obligations accepted through the contract, such as the deletion of any information or personal data of clients that existed in their systems.

And in their allegations to the Proposal for Resolution, they reiterated that they did not keep or maintain any documentation derived from the contract that linked them to ALDRO, so they could not confirm their participation in the events.

2. It should be noted that the LOPDGDD in its article 33, Data Processor, establishes in its sections 3 and 4:

“(…)

3. The data controller shall determine whether, upon the termination of the services provided by the processor, the personal data must be destroyed, returned to the controller, or delivered, where applicable, to a new processor.

The destruction of the data shall not proceed when there is a legal provision that requires its retention, in which case they must be returned to the controller, who will ensure their retention as long as such obligation persists.

4. The data processor may retain, duly blocked, the data as long as there may be legal responsibilities arising from their relationship with the data controller.

“(…)

In the contract signed with ALDRO, ANNEX IV TO THE COMMERCIAL SERVICES CONTRACT SIGNED BETWEEN ALDRO ENERGÍA Y SOLUCIONES, S.L. AND ALFA 57 PRODUCCIONES, S.L., in its Clause III, Duration of the data processing assignment, its section s) states the same as article 33.3 of the LOPDGDD indicating the following:

s) Destination of the data: Once the provision of the contracted services has been fulfilled, destroy the data and, if applicable, the media on which they are recorded, or transmit the data to another processor designated by the controller. Once destroyed, the processor must certify its destruction in writing and must deliver the certificate to the controller of the processing.

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However, the processor may retain a copy, with the data duly blocked, as long as legal responsibilities may arise from the execution of the provision of the contracted services.”

On the other hand, article 74. k) of the LOPDGDD, Minor Infractions, establishes that:

“Minor infractions are considered to be those that will prescribe after one year, the remaining formal infractions of the articles mentioned in sections 4 and 5 of article 83 of Regulation (EU) 2016/679 and, in particular, the following:

“(…)

k) The non-compliance by the processor of the stipulations imposed in the contract or legal act that regulates the processing or the instructions of the data controller, unless legally obliged to do so under Regulation (EU) 2016/679 and this organic law or in cases where it was necessary to avoid the infringement of data protection legislation and the controller or the processor had been warned of it.

“(…)

In light of the documentation provided in the file, the concurrent circumstances and statements made in the procedure all seem to indicate that there is no infringement of the regulations on personal data protection committed by the respondent, in their capacity as data processor; in any case, the infringement they could have incurred would be linked to the non-compliance with the stipulations and instructions of the controller set forth in article 28.3 of the GDPR, an infringement that would be time-barred as more than a year has passed since its commission; however, in no case does the absence or lack of legitimacy contemplated in article 6.1 of the GDPR apply, which is reserved for those cases where the processor acts on their own behalf determining the purposes and means of processing.

Article 28 of the GDPR, Data Processor, establishes that:

“(…)

3. The processing by the processor shall be governed by a contract or other legal act in accordance with the law of the Union or of the Member States, which binds the processor to the controller and establishes the subject matter, duration, nature, and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller. Such contract or

legal act shall stipulate, in particular, that the processor:

a) shall process the personal data only on documented instructions from the controller, including with regard to the transfers of personal data to a third country or an international organization, unless required to do so by Union law or the law of the Member States applicable to the processor; in such a case, the processor shall inform the controller of that legal requirement before the processing, unless that law prohibits such information on important grounds of public interest;

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b) will ensure that the individuals authorized to process personal data have committed to respecting confidentiality or are subject to a legal obligation of confidentiality;

c) will take all necessary measures in accordance with Article 32;

d) will respect the conditions set out in paragraphs 2 and 4 for engaging another processor;

e) will assist the controller, taking into account the nature of the processing, through appropriate technical and organizational measures, wherever possible, so that the controller can comply with its obligation to respond to requests concerning the exercise of the rights of the data subjects established in Chapter III;

f) will help the controller ensure compliance with the obligations set out in Articles 32 to 36, taking into account the nature of the processing and the information available to the processor;

g) at the controller's choice, will delete or return all personal data once the provision of processing services has ended, and will delete existing copies unless the retention of personal data is required by Union or Member State law;

h) will make available to the controller all necessary information to demonstrate compliance with the obligations set out in this article, as well as to enable and contribute to audits, including inspections, by the controller or another auditor authorized by the controller.

In relation to the provisions of letter h) of the first paragraph, the processor will immediately inform the controller if, in its opinion, an instruction infringes this Regulation or other provisions regarding data protection of the Union or the Member States.

(...)

10. Without prejudice to the provisions of Articles 82, 83, and 84, if a processor infringes this Regulation by determining the purposes and means of processing, it will be considered a controller with respect to that processing.”

And the LOPDGD in its Article 33, Processor, establishes that:

“(…)

2. A person will be considered a controller and not a processor who, in their own name and without it being established that they act on behalf of another, establishes relationships with the data subjects even if there is a contract or legal act with the content set out in Article 28.3 of Regulation (EU) 2016/679. This provision will not apply to processing assignments made under public sector procurement legislation.

A person will also be considered a controller who, while acting as a processor, uses the data for their own purposes.”

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Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of sanctions whose existence has been established,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ARCHIVE ALPA 57 PRODUCCIONES, S.L., with NIF B13512892, for an infringement of

Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR.

SECOND: TO NOTIFY this resolution to ALPA 57 PRODUCCIONES, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by writing addressed to the Spanish Agency for Data Protection, presenting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection

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